



UNITED STATES DEPARTMENT OF EDUCATION
OFFICE FOR CIVIL RIGHTS

July 30, 2015

Kimberly A. Green
Executive Director
National Association of State Directors of Career Technical Education Consortium
8484 Georgia Ave, Suite 320
Silver Spring, MD 20910

Dear Ms. Green:

Thank you for your request for information from the U.S. Department of Education's Office for Civil Rights (OCR) pursuant to the Freedom of Information Act (FOIA), 5 U.S.C. § 552. You requested "any memorandum or summary reports that detail how OCR has used the information" provided in states' biennial reports to address systemic problems in complying with requirements under the "Methods of Administration" (MOA) program. You stated that this should include "any correspondence regarding specific actions OCR has taken to gauge the MOA [program]'s effectiveness at ensuring compliance with federal civil rights requirements." Your request explains that the "information being requested deals with the process through which OCR works with grantees to address noncompliance with civil rights requirements under federal laws."

Your request for documents from OCR's official files has been processed according to the provisions of FOIA. The policy of the Department is generally one of full disclosure limited only by the exemptions delineated in FOIA. We were unable to locate any memoranda, summary reports, or correspondence documents that are responsive to your specific request.

In an effort to address your inquiry, however, this letter will describe the process through which OCR works with state agencies under the MOA program to assist them with their compliance responsibilities, including their responsibility to address noncompliance with federal civil rights laws.

As specified in section II of the *Guidelines for Eliminating Discrimination and Denial of Services on the Basis of Race, Color, National Origin, Sex and Handicap in Vocational Education Programs (Guidelines)* (34 C.F.R. Part 100, Appendix B), state agencies are responsible for ensuring that subrecipients that operate career and technical education (CTE) programs do so in a manner that is consistent with the federal civil rights laws. Consistent with the *Guidelines*, OCR's role in the MOA program is to oversee and provide technical assistance to the state agencies. The state agencies, in turn, have primary responsibility for overseeing subrecipients' civil rights compliance.

Partnership and collaboration between OCR and the MOA coordinators has always been an important underpinning of the MOA program. To guide and assist state agencies in their civil rights compliance activities, OCR evaluates state agency biennial reports, provides individualized recommendations for improvement of state agency compliance programs,

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The Department of Education's mission is to promote student achievement and preparation for global competitiveness by fostering educational excellence and ensuring equal access.

conducts an annual training conference for MOA coordinators and other state agency staff working on the MOA program, and provides case-specific technical assistance.

OCR's involvement in state agencies' MOA programs is described in more detail below.

Review of Biennial Reports

OCR provides a detailed written response to each state agency's biennial report. OCR's written responses include a comprehensive analysis of the state agency's letters of findings and voluntary compliance plans (corrective action plans to address findings of noncompliance with federal civil rights requirements). OCR's written responses typically incorporate both positive feedback as well as comments and recommendations to improve the agency's letters of findings and voluntary compliance plans. The written responses include, as appropriate, technical assistance regarding compliance determinations and appropriate corrective actions with respect to issue areas addressed in letters of findings and voluntary compliance plans, such as accessibility, providing promotional materials or other important information to communities serving limited English proficient parents in Spanish and other languages, counseling, and grievance procedures.

Prior to disseminating the written response to each state agency's biennial report, OCR conducts at least one telephone conference call with the state agency's MOA coordinator in order to discuss the details of OCR's response, to provide the state agency with an opportunity for clarification before the issuance of the response, and to respond to questions from state agency staff regarding the report and OCR's response.

MOA Conference

During the annual four-day training conference, MOA coordinators are provided with the information they need to succeed at their jobs. The first day of the conference is targeted at MOA coordinators with fewer than three years of experience, so that OCR can cover the basic requirements of the MOA program (including requirements pertaining to biennial reporting to OCR) without burdening more experienced MOA coordinators with the same information each year. Throughout the conference, OCR staff present training on selected civil rights issues, with a focus on areas in which there is generally the most systemic noncompliance by subrecipients or where there is a significant misunderstanding of applicable requirements, including: accessibility; administrative requirements, such as notices of nondiscrimination, grievance procedures, and Title IX/Section 504/Title II coordinators; recruitment, admissions, and counseling; and a comparison of the requirements of Section 504 that are applicable at the secondary versus postsecondary education levels.

In addition, staff from OCR and selected state agencies present training in MOA program requirements and investigative techniques. The annual training conference also includes an accessibility review demonstration, typically at an actual high school or college, in which trained OCR staff and MOA coordinators provide hands-on demonstrations illustrating how to assess compliance with accessibility standards. Conference attendees are provided with a copy of all of

the materials used at the conference, including PowerPoint presentations, application exercises and answer keys, and sample documents.

Additional Technical Assistance and Outreach

In addition, in recent years, OCR has increased the amount of proactive technical assistance it provides in between the annual training conferences. Specifically, once or twice annually, OCR has conducted a series of six telephone conference calls with new MOA coordinators to provide training on a wide range of topics, including on substantive legal issues such as accessibility and administrative requirements, as well as on procedural issues, such as MOA program requirements and investigative techniques.

In addition to its proactive technical assistance, throughout the year, OCR responds to a high volume of case-specific technical assistance inquiries from MOA coordinators. We encourage them to contact us with questions regarding compliance determinations and appropriate corrective actions. OCR provides guidance on technical compliance standards and in navigating relationships with subrecipients. Both through telephone calls and emails, OCR works with the state agencies to come up with satisfactory resolutions of each situation. In some of these situations, OCR provides technical assistance to the state agencies in working with non-cooperative subrecipients. If the state agencies are ever unable to obtain voluntary compliance by subrecipients, we will assist them with the help of our regional offices in obtaining compliance.

OCR has also developed technical assistance resources to assist the state agencies with their MOA compliance activities. In response to requests from MOA coordinators for sample MOA documents, over the last few years, OCR has provided them a sample letter of findings, sample voluntary compliance plan, sample monitoring chart, and sample targeting plan. These sample documents are attached.

Impact of MOA on OCR's Policy Work

OCR staff attorneys who review biennial reports and provide technical assistance to the state agencies under the MOA program are the same attorneys who draft policy guidance that inform school districts, colleges, and universities of their obligations under federal civil rights laws. These attorneys draw upon their MOA-related experience when they develop the policy guidance. Participation in the MOA program is one way that OCR staff attorneys are made aware of compliance-related issues subrecipients are encountering, which helps OCR identify issue areas in which policy guidance is needed. For example, OCR staff attorneys who review biennial reports and provide technical assistance and training under the MOA program were responsible for developing the recent guidance documents described below.

- English Learner Students and Limited English Proficient Parents Dear Colleague Letter: On January 7, 2015, OCR issued a Dear Colleague Letter clarifying SEAs, school districts and all public schools' obligations to ensure that English learners can participate meaningfully and equally in educational programs and services and to ensure that LEP parents and guardians have meaningful access to district-and school-related information.

In the MOA context, OCR staff attorneys review findings such as whether counselors can effectively communicate with national origin minority students with limited English language skills and whether promotional materials and student financial assistance information are provided in the language of a national origin minority community with limited English language skills.

- Juvenile Justice Facilities Dear Colleague Letter: On December 8, 2014, OCR issued a Dear Colleague Letter explaining the applicability of Federal civil rights laws to juvenile justice residential facilities. In the MOA context, many subrecipients are juvenile justice facilities, which raise unique compliance considerations.
- Title IX Coordinators Guidance Package: On April 24, 2015, OCR issued a Dear Colleague Letter, a letter to Title IX coordinators, and a Title IX Resource Guide. The letters reiterated the requirement that federally funded school districts, colleges, and universities designate a Title IX coordinator and described the responsibilities of those coordinators. The Title IX Resource Guide summarized a school's obligations under Title IX and the Title IX coordinator's role with respect to key issue areas. In the MOA context, these documents are helpful because a majority of the state agencies' letters of findings contain violation findings concerning Title IX administrative requirements. For example, a typical violation finding may involve the failure to designate a Title IX coordinator or to ensure that the Title IX coordinator is appropriately trained and possesses comprehensive knowledge in all areas for which the coordinator is responsible.
- Effective Communication Guidance Package: On November 12, 2014, OCR, the Office of Special Education and Rehabilitative Services, and the U.S. Department of Justice issued a Dear Colleague letter, a Frequently Asked Questions document, and a parent fact sheet clarifying the responsibility of public schools to ensure that communication with students with hearing, vision, or speech disabilities is as effective as communication with all other students. In the MOA context, OCR staff attorneys review findings such as whether counselors can effectively communicate with students with disabilities.

OCR remains committed to addressing issues that are raised through the MOA program. For example, MOA reports indicate that there are still many career and technical education programs which disproportionately enroll male or female students. To address such disproportionality, OCR and the Office of Career, Technical, and Adult Education (OCTAE) are developing policy guidance designed to ensure that all students have equal access to CTE programs.

Because of you and your members' expertise in this area, OCR will be contacting you separately to arrange a time to listen to your suggestions for such guidance. At this point, the guidance to high schools, community colleges, and other CTE providers is expected to underscore that bias based on sex has no place in American schools and that Title IX prohibits schools from relying on sex stereotypes in directing students towards certain fields. The guidance may also offer help to state education agencies thinking about ways to improve students' representation in non-traditional fields as part of their Perkins Act obligations. The OCR attorneys working on this

guidance also review MOA reports and are drawing upon their MOA experience in developing this guidance.

OCR's Past Negotiations with State Agencies

We understand that carrying out the MOA program is a big undertaking for States. The Department is cognizant of the resources that the state agencies have devoted to identifying and remedying discrimination by subrecipients. OCR values the long-standing partnership between OCR and the state agencies, and this collaborative relationship has fostered many changes over the years to reduce the resources necessary to comply with the MOA program by promoting efficiency while maintaining the integrity of the program.

In September 1996, working in partnership with the state CTE agencies, the Department revised the *Procedures for Preparing the Methods of Administration Described in the Vocational Education Guidelines*, first issued in 1979. The 1996 revision was based on recommendations from a nationwide conference of MOA coordinators held to discuss streamlining the MOA process. Many procedural changes resulted from that conference. For example, the 1979 Procedures Memorandum required state agencies to conduct desk audits of 20 percent of their subrecipient universe each year; the 1996 revisions entirely eliminated the desk-audit requirement. To further stimulate quality improvement and reduce burden in the on-site compliance reviews, the Department reduced the number of required on-site reviews by half -- from 5 percent to 2.5 percent of the subrecipient universe. In addition, the revised procedures provided that no state agency would be required to conduct more than 25 on-site reviews each year. The Department also streamlined the content of reports and made the reporting requirement biennial instead of annual.

Additionally, in July 1997, the Department invited select MOA coordinators to a weeklong workshop to conduct a preliminary review of 1997 MOA reports -- the first under the new procedures. This focus group began the collaborative development of the standards and rationale for each of the eight items that state agencies are required to address in their biennial reports. Based on feedback we received from the focus group, in December 1998, the Department issued a Dear Colleague letter providing substantive discussion and content recommendations for each of those required items.

Most recently, in January 2012, the Department issued another Dear Colleague Letter in response to MOA coordinators' requests for clear guidance on how to document the thoroughness of on-site compliance reviews when issuing letters of findings. This letter explains that States have a variety of ways to demonstrate the thoroughness of their reviews. This letter was also the culmination of extensive consultation with MOA coordinators nationwide. The Department convened a series of five telephone conference calls with a focus group of MOA coordinators to reach a common understanding of what would be fair and reasonable expectations for demonstrating and documenting the thoroughness of compliance reviews, given States' available resources. The Department later provided the draft letter to all MOA coordinators for their review and comment prior to its issuance.

We look forward to continuing to share a collaborative and positive relationship with the state agencies to ensure that the state agencies have the necessary guidance and are able to maximize resources for identifying and remedying all unlawful discrimination by subrecipients. We welcome suggestions regarding possible future guidance that might be helpful to the States as well as additional ways to reduce the resources necessary to comply with the MOA program by promoting efficiency while maintaining the integrity of the program.

Please be advised that you have the right under FOIA to appeal the failure to release any records by writing to the address below within 35 days of the date of this letter. Your appeal should be accompanied by a copy of your initial letter(s) of request and this denial letter, and it should contain any evidence or arguments you wish the Department to consider in making an administrative determination of your appeal.

U.S. Department of Education
Office of Management
400 Maryland Avenue, SW, LBJ-2W311
ATTN: Appeals Office
Washington, DC 20202-4500

In the alternative, you may also complete the online FOIA appeals form, available at http://www2.ed.gov/policy/gen/leg/foia/foia_appeal_form_1.html. If you have any questions, please contact the FOIA Service Center at (202) 401-8365 or EDFOIAManager@ed.gov.

We hope this information is helpful.

Sincerely,



Seth M. Galanter
Principal Deputy Assistant Secretary
Office for Civil Rights

Attachments

Sample Letter of Findings
Sample Voluntary Compliance Plan
Sample Monitoring Chart
Sample Targeting Plan